

26VECV01825 26VECV01825

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-09-11

Motion: DEFENDANT'S DEMURRER TO COMPLAINT AND MOTION TO STRIKE CCP 430.10 AND PLAINTIFF'S MOTION TO STRIKE DEFENDANT'S GENERAL DENIAL

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Case Number: 26VECV01825 Hearing Date: September 11, 2026 Dept: W

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

APRIL JOY

JOHNSON, an individual,

Plaintiffs,

vs.

DAVID LEVI, an individual; and DOES 1

THROUGH 30, inclusive,

Defendants.

CASE NO: 25VECV07301

[TENTATIVE]

ORDER RE:

DEFENDANT'S

DEMURRER TO COMPLAINT AND MOTION TO STRIKE CCP 430.10

AND

PLAINTIFF'S MOTION TO STRIKE DEFENDANT'S
GENERAL DENIAL

Dept. W

8:30 a.m.

September 11, 2026

[TENTATIVE] ORDER: The Court GRANTS
Plaintiff's Motion to Strike Defendant's general denial. Additionally, the
Court OVERRULES the demurrer as to the entire Complaint.

Background

This is a habitability, stalking, and eviction case arising out of an unlawful detainer case. Plaintiff April Johnson alleges that she entered into an oral lease agreement with Defendant David Levi to rent an ADU from him for \$2,700 a month. Plaintiff alleges that, after she moved in, Defendant began to sexually harass and stalk Plaintiff. Defendant's alleged behavior is extensive. Defendant allegedly frequently commented on Plaintiff's appearance, sent her sexual or suggestive text messages, and attempted to coerce Plaintiff into using his shower by shutting off her hot water. Defendant also allegedly withheld Plaintiff's mail in order to force her into face-to-face discussions. Additionally, Defendant allegedly drilled a hole in Plaintiff's bathroom wall in order to spy on her. In December of 2025, Plaintiff filed a police report against Defendant based on these intrusions. Plaintiff alleges that, in retaliation for her filing this report, Defendant filed an unlawful detainer suit against Plaintiff in an attempt to evict her.

On March 26, 2026,
Plaintiff filed suit against Defendant, alleging ten causes of action: 1) intrusion into private affairs; 2) constructive eviction; 3) breach of the implied covenant of quiet enjoyment; 4) retaliatory eviction; 5) malicious prosecution; 6) violation of Los Angeles Municipal Code Article 5.3 (tenant anti-harassment ordinance); 7) violation of CIV § 789.3 – interruption of utility services; 8) violation of CIV § 1940.2 – threats or menacing conduct; 9)

violation of CIV § 1708.7 – stalking; and 10) intentional infliction of emotional distress.

On April 20, 2026,
Defendant filed a general denial.

On June 2, 2026,
Plaintiff filed a motion to strike this general denial, due to lack of proof of service.

On June 22, 2026,
Defendant filed a demurrer to the entirety of Plaintiff's Complaint based on res judicata.

Now, the Court hears
both motions.

Discussion

Motion to Strike General Denial

First, Plaintiff moves to strike Defendant's general denial, filed on April 20, 2026. (See, General Denial, p. 1.) Plaintiff correctly points out that Defendant's filing includes no proof of service. (Ibid.)

Proof of service is required for a general denial under both CCP § 465, as well as per the text of the form itself, which states, "[t]he original of this General Denial must be filed with the clerk of this court with proof that a copy was served on each plaintiffs attorney and on each plaintiff not represented by an attorney." (Ibid [emphasis added]; see also CCP § 465.)

Notably, Defendant does not oppose this motion. (Notice of Non-Opposition; see also, Supp. Cohen Decl. ¶ 4.) Thus, Defendant has failed to file a proof of service with their general denial.

For these reasons, the Court GRANTS Plaintiff's Motion to Strike Defendant's general denial.

Demurrer

Next, Defendant demurs to the entirety of Plaintiff's Complaint, arguing that the claims are barred under theories of res judicata and claim preclusion. (Demurrer, p. 2.)

i)

Meet and Confer

First, the Court notes that Defendant has failed to meet and confer properly. Before filing a demurrer, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. (CCP § 430.41(a) [emphasis added].) A declaration must be filed with a demurrer regarding the results of the meet and confer process. (CCP § 430.41(a)(3).)

Here, Defendant provides no meet and confer declaration whatsoever. (See generally, Demurrer.) Thus, Plaintiff has failed to meet and confer properly over this motion.

Generally, the Court would be inclined to continue this motion and order the parties to meet and confer before proceeding. However, the Court will opt to hear this motion on the merits.

ii)

Proof of Service

Additionally, the Court notes that there is a dispute as to the proof of service for this demurrer. Defendant has attached proof of service to this demurrer, dated June 22, 2026. (Demurrer, p. 5.) However, Plaintiff asserts in their Opposition that they never received this proof of service and that they have yet to receive any documents whatsoever from Defendant. (Opp. p. 4, fn. 1; see also, Cohen Decl. ¶ 3.) Plaintiff explains that they have been following the filings in this case by checking the Court's docket daily and by purchasing filings from the Court website. (Cohen Decl. ¶ 3.)

Given that this proof of service issue arose as part of Plaintiff's Motion to Strike Defendant's general denial, the Court is interested in getting to the bottom of why Plaintiff has received no documents from Defendant, despite there being proof of service.

The Court intends to use the hearing on this motion to ask both parties about this issue. If necessary, the Court will order the parties to meet and confer further.

iii)

Analysis of the Merits

Finally, the Court will address the merits of Defendant's demurrer.

Defendant demurs to the entirety of Plaintiff's Complaint, arguing that the claims are barred under theories of claim and issue preclusion. (Demurrer, p. 2.)

In support of this argument, Defendant points to three recent hearings:

Case No. 25VERO02C50 (Demurrer, Ex. A); Case No. 26VERO00029 (Demurrer, Ex. B); and Case No. 26VERO00162 (Demurrer, Ex. C). All three of these cases were based on the same underlying facts, and were dismissed with prejudice. (Demurrer, Exs. A-C.) Notably, Defendant engages in no analysis as to how claim or issue preclusion applies beyond pointing out these factual similarities. (Id. p. 3:8-27.)

The Court does not find that the existence of these cases gives rise to a claim or issue preclusion defense. In order to assert that claim preclusion bars these claims, Defendant must establish that, "[the] second suit involves (1) the same cause of action (2) between the same parties (3) after a final judgment on the merits of the first suit." (DKN Holdings LLC v. Faerber (2015) 61 Cal.4th 813, 824 [emphasis added].) Similarly, "issue preclusion applies (1) after final adjudication (2) of an identical issue (3) actually litigated and necessarily decided in the first suit and (4) asserted against one who was a party in the first suit or one in privity with that party." (Id. at p. 825 [emphasis added].)

Here, none of these cases involve the "same causes of action" or "an identical issue". The three cases cited by Defendant were civil harassment petitions brought under CCP § 527.6. (Demurrer, Exs. A-C.) These claims sought restraining orders against Defendant, not monetary relief. (Ibid.) By contrast, Plaintiff's Complaint alleges ten civil causes of action, ranging from stalking to wrongful eviction. (Compl. p. 1.) Plaintiff seeks monetary damages from these claims, not a restraining order. (Id. p. 15:10-23.) Thus, nothing about these earlier cases precludes Plaintiff from bringing the present

claims.

Additionally, the only issue that was litigated as a part of these hearings was whether Plaintiff had met her burden of proof to apply for an order for protection. (Demurrer, Ex. A.) The extend of the analysis in these hearings was that, "the Court finds the party requesting the order of protection did not sustain the applicable burden of proof and accordingly the request is denied."

(Ibid.) Thus, the only issue

that has been litigated is whether Plaintiff met their burden of proof as to this type of relief. Given that Plaintiff's current lawsuit does not seek an order of protection, issue preclusion does not apply here.

For these reasons, the Court OVERRULES the demurrer as to the entire Complaint.

Conclusion

The Court GRANTS Plaintiff's Motion to Strike Defendant's general denial. Additionally, the Court OVERRULES the demurrer as to the entire Complaint.

IT

IS SO ORDERED, Plaintiff TO GIVE NOTICE.

September 11, 2026

Judge of the Superior Court